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LEGAL MAXIMS – REVIEW NOTES

A **legal maxim** is a **short, established principle or rule of law**, usually expressed in **Latin**, that summarizes a **fundamental legal concept** developed through long legal practice and judicial decisions.

In simple terms, a legal maxim is a **guiding statement** that helps courts, lawyers, and students **understand, interpret, and apply the law**.

Key points about legal maxims:

- They are **general principles**, not statutes or written laws.
- Most legal maxims come from **Roman law** and **common law traditions**.
- Courts use them as **guides in reasoning and decision-making**, especially when the law is unclear.
- They help explain **fairness, justice, and legal logic** in a concise way.

1. *Ignorantia legis non excusat* – Ignorance of the law excuses no one.

Explanation: A person cannot escape liability by claiming that they did not know the law.

Examples:

1. A driver is fined for overspeeding despite claiming he did not know the speed limit.
 2. A taxpayer is penalized for failure to file income tax returns.
 3. A store owner is sanctioned for selling prohibited items without a permit.
 4. A person is arrested for illegal possession of firearms despite claiming ignorance.
 5. A business is closed for violating labor laws it failed to study.
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2. *Ubi jus ibi remedium* – Where there is a right, there is a remedy.

Explanation: The law provides relief when a legal right is violated.

Examples:

1. An illegally dismissed employee files a labor complaint.
2. A tenant sues for unlawful eviction.
3. A victim of libel files a civil case for damages.
4. A landowner seeks recovery of property taken without consent.
5. A consumer files a complaint for defective products.

3. *Actus non facit reum nisi mens sit rea* – The act does not make a person guilty unless the mind is also guilty.

Explanation: Criminal liability requires both a wrongful act and criminal intent.

Examples:

1. A doctor accidentally harms a patient during emergency treatment.
2. A driver hits a pedestrian due to sudden brake failure.
3. A person unknowingly carries prohibited items planted in his bag.
4. A child causes damage without understanding the consequences.

5. An employee mistakenly transfers money due to system error.
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4. *Audi alteram partem* – Hear the other side; no one should be condemned unheard.

Explanation: Fairness demands that both parties be given the opportunity to be heard.

Examples:

1. An employee is allowed to explain before termination.
 2. A student is heard before being expelled.
 3. A respondent is notified before judgment is rendered.
 4. A suspect is allowed to give a statement before charges are filed.
 5. A teacher listens to both students before imposing discipline.
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5. *Nemo iudex in causa sua* – No one should be a judge in their own case.

Explanation: A decision-maker must be impartial and free from self-interest.

Examples:

1. A judge inhibits himself from a case involving his relative.
2. A barangay captain does not decide a complaint against himself.
3. A school official does not investigate accusations against his own child.
4. A prosecutor recuses himself due to personal involvement.
5. A company manager does not rule on charges filed against him.

6. *Res ipsa loquitur* – The thing speaks for itself.

Explanation: The facts alone show negligence without further proof.

Examples:

1. A surgical instrument is left inside a patient.
2. A newly built building collapses.
3. An elevator suddenly free-falls.
4. A passenger bus catches fire due to poor maintenance.

5. A patient is burned during surgery by medical equipment.
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7. *Pacta sunt servanda* – Agreements must be kept.

Explanation: Parties to a contract must honor their agreements.

Examples:

1. A borrower must repay a loan as agreed.
 2. A landlord must respect lease terms.
 3. A supplier must deliver goods on schedule.
 4. An employer must pay agreed wages.
 5. A contractor must complete a project as stipulated.
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8. *Lex prospicit, non respicit* – The law looks forward, not backward.

Explanation: Laws apply prospectively, not retroactively.

Examples:

1. A new crime cannot punish past conduct.
 2. Increased penalties apply only after enactment.
 3. A tax law applies only after effectivity.
 4. A regulation cannot invalidate previous legal acts.
 5. A new ordinance does not affect past transactions.
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9. *Dura lex sed lex* – The law may be harsh, but it is the law.

Explanation: Laws must be followed even if they appear strict.

Examples:

1. A violator is fined despite financial hardship.
2. A curfew rule is enforced without exception.
3. An unlicensed driver is penalized.
4. A business is closed for permit violations.

5. A deadline is enforced despite excuses.
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10. *Fiat justitia ruat caelum* – Let justice be done though the heavens fall.

Explanation: Justice must prevail regardless of consequences.

Examples:

1. A powerful politician is prosecuted.
 2. A judge decides without fear of backlash.
 3. A whistleblower exposes corruption.
 4. A court convicts despite public pressure.
 5. A witness testifies truthfully despite threats.
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11. *In dubio pro reo* – When in doubt, rule in favor of the accused.

Explanation: Doubts in criminal cases benefit the accused.

Examples:

1. Weak evidence leads to acquittal.
 2. Conflicting testimonies favor the accused.
 3. Lack of proof results in dismissal.
 4. Unclear identification causes acquittal.
 5. Doubtful forensic evidence benefits the accused.
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12. *Nullum crimen sine lege* – There is no crime without a law.

Explanation: An act is punishable only if prohibited by law.

Examples:

1. A person cannot be punished for a legal act.
2. A new offense does not apply retroactively.
3. A moral wrong without legal basis is not punishable.
4. A new regulation cannot criminalize past acts.

5. An undefined act cannot be penalized.
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13. *Caveat emptor* – Let the buyer beware.

Explanation: Buyers must exercise caution in purchases.

Examples:

1. A buyer purchases defective electronics without inspection.
 2. A buyer fails to verify land ownership.
 3. A buyer ignores product warnings.
 4. A buyer buys counterfeit goods unknowingly.
 5. A buyer accepts risks in second-hand purchases.
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14. *Nemo dat quod non habet* – No one can give what they do not have.

Explanation: Ownership cannot be transferred by a non-owner.

Examples:

1. A thief sells stolen goods.
 2. A non-owner sells land.
 3. A fake agent sells property.
 4. A borrower sells borrowed items.
 5. A squatter sells occupied land.
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15. *Volenti non fit injuria* – To one who consents, no injury is done.

Explanation: Consent removes liability for resulting harm.

Examples:

1. A boxer is injured during a match.
2. A volunteer accepts risk in rescue work.
3. A player is injured in a game.
4. A participant joins a dangerous activity.

5. A stunt performer is injured during filming.
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16. *Ex post facto* – After the fact (used to describe retroactive laws, usually prohibited).

Explanation: Laws should not punish acts committed before enactment.

Examples:

1. A law criminalizing past conduct is void.
 2. Increased penalties cannot apply retroactively.
 3. Past legal acts cannot be punished later.
 4. A new crime cannot cover old behavior.
 5. Retroactive punishment is unconstitutional.
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17. *De minimis non curat lex* – The law does not concern itself with trivial matters.

Explanation: Courts ignore insignificant disputes.

Examples:

1. Minor scratches are dismissed in court.
2. Trivial complaints are rejected.
3. Insignificant damage is ignored.
4. Minor inconvenience is not litigated.
5. Small accidental losses are disregarded.

18. *Salus populi est suprema lex* – The welfare of the people is the supreme law.

Explanation: Public welfare outweighs individual interests.

Examples:

1. Lockdowns during pandemics.
2. Evacuation during disasters.
3. Mandatory vaccinations.
4. Curfews for public safety.

5. Emergency powers during crises.
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19. *Qui facit per alium facit per se* – He who acts through another acts himself.

Explanation: A person is liable for acts done through others.

Examples:

1. An employer orders illegal acts.
 2. A mastermind directs crimes.
 3. A principal instructs an agent to commit fraud.
 4. A leader commands unlawful actions.
 5. A superior orders bribery.
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20. *Expressio unius est exclusio alterius* – The expression of one thing excludes others.

Explanation: What is stated implies exclusion of what is not stated.

Examples:

1. A law lists specific qualifications only.
2. A contract names allowed expenses only.
3. A rule lists permitted actions only.
4. A statute enumerates penalties exclusively.
5. A policy specifies limited benefits.